

		as Counsel– Civil (Form MC-053) <u>removing from the order the deposition rescheduling in paragraph 8.</u> Counsel shall be relieved as counsel of record for Plaintiff effective upon the filing of a proof of service to the client and all parties showing timely service of the signed Form MC-053 and notice of this ruling. The court finds that Counsel has complied with the requirements of Rule 3.1362 of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client’s current address. Counsel also has declared a justifiable reason to be relieved as counsel — breakdown of the relationship with the client. (See Form MC-052 Attorney Decl. ¶ 2.) Therefore, the court will grant the motion to be relieved as counsel. Counsel does not state when Plaintiff’s deposition is set to occur. Furthermore, Counsel does not state if Defendants’ counsel agreed to rescheduling the deposition that was (presumably) noticed. The court will not order rescheduling without this information. Moving Counsel shall give notice.
12	Smith vs. Mendez	TENTATIVE RULING: <u>Motion for Summary Judgment</u> For the reasons set forth below, Defendant Susan Mendez’s motion for summary judgment in favor of Defendant and against Plaintiff Thomas Smith is DENIED. Defendant’s objections are overruled. The court notes Objection Nos. 1-6 concern evidence that Defendant also submitted in support of her motion for summary judgment. <u>Statement of Law</u> “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Civil Proc. Code, § 437c, subd. (c).)

	A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Civil Proc. Code § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) “In some instances..., ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v. Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) 482.) In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably
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